

25LBCV02869 25LBCV02869

County: los-angeles

Division: Civil Law and Motion

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BACKGROUND

Plaintiff

filed this action on October 15, 2025, alleging breach of an equipment financing agreement by Del Toro Equipment, LLC, breach of a personal guaranty by George Benheretz ("Defendant"), and breach of a corporate guaranty by Southbay Transport Inc.

On

December 24, 2025, the Court entered Default against all Defendants.

On

May 19, 2025, the Court granted Plaintiff's request for default judgment against all Defendants and entered judgment.

On

July 22, 2026, Defendant George Benheretz filed the instant motion for relief from that Order.

As

of September 21, 2026, no opposition has been filed, and no other Defendants have moved for relief.

DISCUSSION

Applicable

Law

Code

of Civil Procedure section 473, subdivision (b) provides for either discretionary or mandatory relief from certain prior actions or proceedings in the trial court. (*Luri v. Greenwald* (2003) 107 Cal.App.4th 1119, 1124.)

Pursuant

to Code of Civil Procedure § 473(b), both discretionary and mandatory relief is available to parties from a judgment, dismissal, order, or other proceeding. Discretionary relief is

available under the statute as “the court may, upon any terms as may be just, relieve a party or his or her legal representative from judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.

(Code of Civ. Proc. § 473(b).) “Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.” (*Ibid.*)

Alternatively,

mandatory relief is available when “accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect.” (*Ibid.*) Under this

statute, an application for discretionary or mandatory relief must be made no more than six months after entry of the judgment, dismissal, order, or other proceeding from which relief is sought.

(Code Civ. Proc., § 473(b); *English v. IKON Business Solutions* (2001) 94 Cal.App.4th 130, 143.)

“[W]hen

relief under section 473 is available, there is a strong public policy in favor of granting relief and allowing the requesting party his or her day in court...[Citation.]” (*Rappleyea v. Campbell* (1994) 8 Cal. 4th 975, 981-82.)

Analysis

As

a preliminary matter, Defendant asks the Court to take judicial notice of

Exhibits A-G. These requests are not necessary as these documents are already part of the Court's record, but nevertheless these requests are GRANTED.

Defendant argues that default judgment should be vacated on two grounds: (1) improper service and (2) his failure to appear was the product of mistake, surprise, and excusable neglect rather than any avoidance of service. As an initial matter, Defendant acknowledges that this motion for discretionary relief under Section 473, subdivision (b) is untimely. Entry of default was entered on December 24, 2025, more than six months before this Motion was filed. "The six-month time limit for granting statutory relief is jurisdictional and the court may not consider a motion for relief made after that period has elapsed. The six-month period runs from entry of default, not entry of judgment. (Manson, Iver & York v. Black (2009) 176 Cal.App.4th 36, 42.)

However, Defendant contends that the Court still retains the power to vacate the default in equity. "Even where relief is no longer available under statutory provisions, a trial court generally retains the inherent power to vacate a default judgment...where a party establishes that the judgment or order was void for lack of due process or resulted from extrinsic fraud or mistake." (County of San Diego v. Gorham (2010) 186 Cal.App.4th 1215, 1228; Bacon v. Bacon (1907) 150 Cal. 477, 491-92; Olivera v. Grace, 122 P.2d 564, 567-68; Stiles v. Wallis (1983) 147 Cal.App.3d 1143, 1147 ("There are four grounds which a court, utilizing its equity capacity may rely upon to provide relief from default. Those areas are (1) void judgment, (2) extrinsic fraud, (3) constructive service, and (4) extrinsic mistake.") To set aside a default judgment based upon extrinsic mistake, the defaulting party must show that 1) it has a meritorious case, 2) it has a satisfactory excuse for not presenting a defense to the original action, and 3) it acted diligently in moving to set aside the default once ... discovered. (Stiles, 147 Cal.App.3d at,1147.)

Here, the Court finds that under Code of Civil Procedure §§ 473(b), 473.5, Defendant's Motion was filed untimely. However, relying on its equitable powers, the Court has the authority to set aside the default and default judgment in the instant case as Defendant has submitted sufficient evidence to demonstrate that the judgment is void to due to improper service. Defendant asserts that the purported substituted service at 3711 Long Beach Boulevard, Suite 1004, Long Beach, California, did not comply with Code of Civil Procedure section 415.20,

subdivision (b) because the location was not Defendant's dwelling house, usual place of abode, usual place of business, or usual mailing address. Defendant further contends that the "unidentified woman" with whom the papers were left was not a person apparently in charge with any relationship to Defendant, and personal delivery was not first attempted with reasonable diligence at any proper location.

Defendant asserts that the process server went to the 3711 Location three times, where he eventually left the papers with " 'JANE DOE' – REFUSED TO GIVE NAME – OFFICE STAFF," described only by age, height, weight, hair, and eye color. (Ex. A.) Defendant contends that the server never attempted the Long Beach 90806 domicile alleged in Plaintiff's own complaint, never attempted the guarantor address in Plaintiff's own records (3180 Golden Avenue, Long Beach), nor did Plaintiff attempt service at the actual business address listed on all of the invoices for the last 2+ years (i.e., 233 Avenida Campillo, Calexico, CA 92231), and never attempted any skip trace or inquiry shown in the record. (Exs. A–C).

However, Defendant concedes that the 3711 Location was not invented by Plaintiff: "A Statement of Information for Del Toro Equipment, LLC was inadvertently filed with the Secretary of State on October 30, 2025 lists the bare building address '3711 Long Beach Blvd,' with no suite number, and lists the company's mailing address as P.O. Box 9297, Long Beach, California 90810, not Suite 1004. (Ex. G). Unfortunately, Defendant, Mr. Benheretz accidentally merely clicked the button on the secretary of state's website, despite him updating the Agent for Service of Process to the known Calexico, CA business address, however CA Secretary of State's website merely retained decade-old Long Beach address. This was a computer error, which was done unintentionally, as Defendant has not operated at said location, nor received mail or had access to said mail or premises since approximately 2015 (Decl. Benheretz, ¶ 13)." (Mot., p. 6.)

The Court finds that while Plaintiff served this individual Defendant by substituted service after two attempts at personal service, further due diligence could have been exercised based on new facts brought before the Court for the first time in this Motion. Substituted service on an individual is valid only if (1) the summons "cannot with reasonable diligence be personally delivered," and (2) the copies are left "at the person's dwelling house, usual place of abode, usual place of business, or usual mailing address," (3) "in the presence of a competent member of the

household or a person apparently in charge of his or her office, place of business, or usual mailing address,” who is informed of the contents, (4) followed by first-class mailing to “the place where a copy of the summons and complaint were left.” (CCP § 415.20(b).)

Defendant has offered evidence that Plaintiff failed to verify that the individual with whom the summons were left actually worked for Defendant, or that the office belonged to Defendant. Defendant submits evidence that the name on the suite differed from Defendant’s business name, and that Plaintiff was aware of two other addresses that it could have attempted service at. Overall, Defendant has provided sufficient evidence of a satisfactory excuse due to improper service and showed diligence in filing the instant Motion within approximately two months of learning about the case. Plaintiff has failed to oppose and thus has not carried its burden to submit any rebuttal evidence to demonstrate that service was proper.

CONCLUSION

Defendant George Benheretz’s Motion to Quash Service of Summons and Set Aside and Vacate Default and Default Judgment is GRANTED.